



A GRAND SOCIETY OF NATIONS

VATTEL'S *THE LAW OF NATIONS* (1758)

IN CONTEXT

FOCUS

International law

BEFORE

1625 Dutch statesman Hugo Grotius's *On the Law of War and Peace* is published. It is regarded as the first book on international law.

1648 The Peace of Westphalia ends the Thirty Years' War between Protestant and Catholic Europe and establishes state sovereignty as a fundamental cornerstone of international relations.

1749 Christian Wolff publishes *The Law of Nations*.

AFTER

1776 The US Declaration of Independence, partly inspired by Vattel's *The Law of Nations*, is signed.

1920 The League of Nations is established in the aftermath of World War I, with the aim of maintaining global peace.

Swiss diplomat Emmerich de Vattel (1714–1767) wrote the first widely accessible treatise on international law. He was inspired by Enlightenment philosophers, such as Germans Gottfried Wilhelm Leibniz and Christian Wolff, and their work on natural law and international politics. Wolff's 1749 publication *Jus Gentium (The Law of Nations)* contained key ideas, but its Latin text and complex arguments made it impenetrable to a wider audience. Vattel decided to take Wolff's ideas on what duties nations owe to each other and create his own work as a practical guide for statesmen.

A national blueprint

With its mixture of philosophical arguments and practical politics, Vattel's *The Law of Nations*, or *Principles of the Law of Nature, Applied to the Conduct and Affairs of Nations and Sovereigns* was well received following its publication in French in 1758. Vattel argued that like individual people, nations should be free and independent

and able to enjoy that liberty without interference from a foreign power. Nations must also accept, however, that they are underpinned by a common concern for each other and are obliged to work together, particularly through the free flow of commerce.

American colonists fighting taxes imposed from Britain were drawn to Vattel's theories. They proved a major influence on the 1776 Declaration of Independence and the US Constitution (1787). ■



The natural society of nations cannot subsist, unless the natural rights of each be duly respected.

Emmerich de Vattel
The Law of Nations



See also: Grotius's *On the Law of War and Peace* 92 ■ The US Constitution and Bill of Rights 110–117 ■ The United Nations and International Court of Justice 212–219